

25STCV26071 25STCV26071

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Case Number: 25STCV26071 Hearing Date: September 2, 2026 Dept: 400

MOTION

TO STRIKE

The Court tenders

the following tentative decision in the matter Joshua Grekin v. Good News

Only LLC, et al., Los Angeles County Superior Court case number 25STCV26071,

set for hearing on September 2, 2026. Joshua Grekin (Plaintiff) moves to strike Good News Only LLC's (Defendant)

answer. Defendant has not filed an opposition. The motion is granted.

A. Legal Standard

The Court

may, upon a motion, or at any time in its discretion, and upon terms it deems

proper, strike any irrelevant, false, or improper matter inserted in any

pleading. (Code Civ. Proc., § 436, subd. (a).) The Court may also strike all or

any part of any pleading not drawn or filed in conformity with the laws of this

state, a court rule, or an order of the Court. (Id., § 436, subd. (b).)

The grounds for a motion to strike are that the pleading has irrelevant, false

or improper matter, or has not been drawn or filed in conformity with laws. (Id.,

§ 436.) The grounds for moving to strike must appear on the face of the

pleading or by way of judicial notice. (Id., § 437.)

When a motion

to strike is granted, the Court determines whether there is a reasonable

possibility that the defect can be cured by amendment. (Blank, supra,

39 Cal.3d at p. 318). When a plaintiff "has pleaded the general set of

facts upon which his cause of action is based," the court should give the

plaintiff an opportunity to amend his complaint, since plaintiff should not "be

deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars.” (Reed v. Norman (1957) 152 Cal.App.2d 892, 900.)

B. Discussion

Plaintiff moves to strike Defendant's answer on the grounds that at the time it was filed Defendant was a suspended corporation. The “powers, rights, and privileges” of a corporation may be suspended for failure to comply with certain tax obligations. (Rev. & Tax. Code, § 23301.) This means a suspended corporation may not prosecute or defend an action in a California court. (Timberline, Inc. v. Jaisinghani (1997) 54 Cal.App.4th 1361, 1365.) If the corporation's status is discovered during litigation, Courts often allow for a short continuance so the corporation may seek reinstatement. (Id. at p. 1366.)

Here, Plaintiff notified Defendant that it was a suspended entity on December 8, 2025. (Rini Decl. ¶ 6.) The parties agreed to an extension of Plaintiff's motion to strike deadline so that Defendant could pursue reinstatement efforts. (Id. ¶ 7.) Defendant was still involved in these efforts as of February 20, 2026. (Id. ¶ 8.) Defendant filed the present answer on May 27, 2026. (Id. ¶ 11.) At that time, Defendant remained suspended. (Id. ¶ 14, Ex. D.) Thus, Defendant lacked the legal capacity to file its answer and it constitutes an improper matter properly stricken under Code of Civil Procedure section 436, subdivision (a). A continuance is not justified because Defendant was already aware of its suspended status for months and still chose to improperly file its answer. Accordingly, Plaintiff's motion to strike is granted.

Conclusion:

The motion to strike is granted.